U.S. NEWS

Judge hands San Jose win in license plate reader case

BY KEITH MENCONI/SAN JOSÉ SPOTLIGHT

Updated 5:48 PM UTC, October 6, 2026

A judge has dismissed a lawsuit challenging San Jose's network of license plate reader cameras, dealing a legal setback to opponents of a technology used to fight crime that has divided the city's residents over fears of dragnet surveillance.

In a ruling delivered Friday, Santa Clara County Superior Court Judge Jeffrey El-Hajj rejected arguments that the city's practice of allowing warrantless police searches of its automated license plate reader (ALPR) data — derived from a network of more than 500 devices scattered across town — violates the California Constitution's guarantee of privacy rights and prohibition on unreasonable searches. The ruling follows the lead of an earlier decision from a California Appellate Court that found drivers have no reasonable expectation of privacy when traveling through public streets.

Plaintiffs have the option to appeal the ruling and said they are reviewing their legal options. The city also faces a separate civil case targeting its ALPR system now working its way through federal court.

City Attorney Susana Alcala Wood welcomed the news.

"The court's dismissal of the complaint is testament to the fact that the city's ALPR system meets constitutional scrutiny and only gathers information that is already observed from the public rights-of-way," Alcala Wood told San José Spotlight.

Backers of the technology contend it has emerged as a vital crime fighting tool, helping San Jose's overstretched police force solve numerous crimes.

But the lawsuit, filed in November 2025, warns the vast trove of data generated by the camera network can be used to track drivers' whereabouts as they travel throughout the city. The civil liberties organizations are representing two nonprofits that advocate for South Bay immigrants — Services, Immigrant Rights and Education Network (SIREN) and the Council on American-Islamic Relations.

"We believe strongly that the ruling is wrong on the law, and all options for next steps are on the table," Andrew Crocker, surveillance litigation director at EFF, told San José Spotlight.

Plaintiffs had asked the court to restrict access to the data by requiring law enforcement agencies to first obtain a warrant before conducting a search.

In explaining his ruling, El-Hajj cited a 2024 decision from California's 4th District Court of Appeals, which determined that video evidence obtained using streetlight cameras operated by San Diego could be used in a murder prosecution. In the ruling, the court noted that people are aware they may be filmed by security cameras on city streets.

El-Hajj rejected plaintiffs' arguments that the sheer quantity of cameras in San Jose makes the city's network a far more invasive law enforcement tool.

The controversy surrounding San Jose's use of ALPR cameras became even more intense last month when Police Chief Paul Joseph revealed the San Jose Police Department fired an officer in April for allegedly sharing location data with his cousin.

Amid the public outcry, a group of councilmembers unveiled new safeguards for the technology, including proposals aimed at making it harder for city employees to use personal devices to access sensitive law enforcement data.

The City Council already passed an earlier package in March that has reduced the amount of time the city can hold onto the data from one year to 30 days.

However, so far the guardrails have still fallen well short of demands from many critics, who are calling on San Jose's leaders to follow the lead of other Bay Area jurisdictions — such as Santa Clara County, Los Altos Hills and Mountain View — and cut ties entirely with Flock Safety, the controversial vendor contracted to provide the ALPR technology to the city.

“These cameras have been used to target immigrants already, but the reality is that we all will be subject to their far-reaching impact,” Huy Tran, executive director of SIREN, told San José Spotlight.

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This story was originally published by San José Spotlight and distributed through a partnership with The Associated Press.